

Master Services Agreement

Atlas Holdings Ltd and Northwind Logistics GmbH

1. Definitions

“Services” means the services described in each Statement of Work executed under this Agreement. “Deliverables” means any output produced by the Supplier in performing the Services. “Confidential Information” has the meaning given in clause 6.

2. Term

This Agreement commences on the Effective Date and continues for an initial term of twenty-four months, renewing automatically for successive twelve-month terms unless terminated in accordance with clause 8.

3. Charges and payment

The Customer shall pay the charges set out in the applicable Statement of Work within thirty days of the date of a valid invoice.

4. Warranties

The Supplier warrants that the Services will be performed with reasonable skill and care and in accordance with good industry practice.

5. Limitation of liability

Neither party excludes liability for death or personal injury caused by negligence, or for fraud. Subject to that, each party's aggregate liability under this Agreement is limited to the charges paid in the twelve months preceding the claim.

6. Confidentiality

Each party shall keep the other's Confidential Information secret and shall not disclose it to any third party except to those of its personnel who need to know it.

7. Data protection

Each party shall comply with applicable data protection legislation in performing its obligations under this Agreement.

8. Termination

Either party may terminate this Agreement on ninety days' written notice, or immediately if the other party commits a material breach that is not remedied within thirty days.

9. Governing law

This Agreement is governed by the laws of England and Wales. Signed for and on behalf of the

parties by their duly authorised representatives.